



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

January 02, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11323
(THIRTEENTH REVISION)

EXPIRATION DATE: 2028-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Sharpsville Container Corporation
Sharpsville, PA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of non-DOT specification cylinders for the transportation in commerce of hazardous materials authorized in DOT Specification 39 cylinders. This special permit provides no relief from the Hazardous Material Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302(a)(1) and 173.304(a) in that a non-DOT specification cylinder is not authorized, except as specified herein.

5. BASIS: This special permit is based on the application of Sharpville Container Corporation dated May 23, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hazardous materials authorized for transportation in DOT specification 39 cylinders.	2.1 or 2.2	As appropriate	N/A

7. SAFETY CONTROL MEASURES:

PACKAGING: Packagings prescribed are non-DOT specification non-refillable steel cylinders as described in McDowell Manufacturing's application, dated March 11, 1997, and Renaissance Industries application dated January 8, 2001, on file with the Office of Hazardous Materials Safety. The packagings must also conform to a DOT Specification 39 cylinder (§§ 178.35 and 178.65), except as follows:

§ 178.65(a) *Type, size, service pressure.* Each cylinder must be of welded construction. The marked service pressure may not exceed 80 percent of the test pressure and may not exceed 2200 psig.

(1) Size limitation: Maximum water capacity may not exceed 10 pounds (277 cubic inches).

(2) and (3) * * *

§ 178.65(b) *Material; steel.*

(1) Steel:

(i) AISI 1010 or 1020 aluminum killed steel with the following composition: * * *.

(ii) Not applicable.

(iii) * * *

(iv) Longitudinal welded cylinders made from drawn over mandrel (D.O.M.) tubing per ASTM A513-5 are authorized.

(v) Welded Austentic Stainless Steel Type 304/L dual rated, ASTM A-249 Specification; carbon (0.08), manganese (2.00 max.), phosphorous (0.045 max.), sulfur (0.030 max.), silicon (1.0 max.), chromium (18.0 to 20.0), nickel (8.0 to 12.0), Tensile Strength 75 ksi min., Yield Strength 41 ksi min. (per calculation), Elongation 35% in 2 in. min., Hardness B90 max.

(2) Not applicable

(3) and (4) * * *

§ 178.65(c) *Manufacture.*

(1) (i), (ii) and (iii) * * *

(2) (i) through (v) - Not applicable

(2) (vi) and (vii) * * *

(3) and (4) * * *

(Added): (5) Drawn over mandrel tubing:

(i) Each longitudinally, electrically resistance welded (ERW) seam must be 100% inspected by ultrasonic and eddy current testing.

(ii) After cold drawing, each tube must be qualified by non-destructive testing in accordance with ASTM-A-513 Supplementary Requirement S8.

§ 178.65(i) *Markings.* Applies, except that each cylinder must be marked “DOT-SP 11323” instead of “DOT-39”.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

- b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
 - c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.
 - e. Shippers using the packaging covered by this special permit must comply with all provisions of this special permit and all other applicable requirements contained in 49 CFR Parts 171-180.
 - f. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.
 - g. Cylinders must be transported in strong outside packaging in accordance with § 173.301(a)(9).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft and passenger-carrying aircraft. (See restrictions in paragraph 10.b.)
10. MODAL REQUIREMENTS:
- a. A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper shall furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
 - b. Transportation of Division 2.1 materials are not authorized aboard cargo vessel or aircraft unless specifically authorized in the Hazardous Materials Table (§ 172.101).
 - c. Aircraft quantity limitations listed in the Hazardous Materials Table (§ 172.101) for Division 2.2 materials are not waived under the terms of this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Smith/Casey Chambers